

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 41-005

**Amendments to Title 17 of the Chickasaw Nation Code
(Actual Physical Control and Driving Under the Influence)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously passed rules and regulations on criminal offenses and wishes to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 17, Chapter 8, Section 17-800.2, Subsection E, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through):

SECTION 17-800.2

ACTUAL PHYSICAL CONTROL.

E. ~~Conviction for a second or subsequent offense of Actual Physical Control, or following an offense of 17-800.8, Driving under the Influence, shall be punishable by a fine not to exceed fifteen thousand (\$15,000.00), by a term of imprisonment not to exceed three (3) years, or both.~~ Any person who, having been convicted of or having received deferred judgment for a violation of this section or following an offense of 17-800.8, Driving Under the Influence, or a violation pursuant to the provisions of any federal, tribal, or state law prohibiting the offenses of Actual Physical Control or Driving Under the Influence, commits a subsequent violation of this section within ten (10) years of the date following the completion of the execution of said sentence or deferred judgment shall, upon conviction, be punishable by fine a not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

BE IT FURTHER RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 17, Chapter 8, Section 17-800.8, Subsection E, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through):

SECTION 17-800.8DRIVING UNDER THE INFLUENCE.

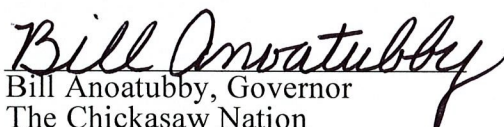
E. ~~Conviction for a second or subsequent offense of Driving under the Influence, or following an offense of 17-800.2, Actual Physical Control, shall be punishable by a fine not to exceed fifteen thousand (\$15,000.00), by a term of imprisonment not to exceed three (3) years, or both.~~ Any person who, having been convicted of or having received deferred judgment for a violation of this section or following an offense of 17-800.2, Actual Physical Control, or a violation pursuant to the provisions of any federal, tribal, or state law prohibiting the offenses of Actual Physical Control or Driving Under the Influence, commits a subsequent violation of this section within ten (10) years of the date following the completion of the execution of said sentence or deferred judgment shall, upon conviction, be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 15, 2023, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date:

DEC 15 2023

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-005
Amendments to Title 17 of the Chickasaw Nation Code
(Actual Physical Control and Driving Under the Influence)

Explanation:

This resolution amends the Chickasaw Nation Code to clarify the punishment for second or subsequent offenses of Actual Physical Control and Driving Under the Influence.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature